

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUP069248: IN THE MATTER OF: J.G. WENTWORTH ORIGINATIONS, LLC

08/17/2026 in Department 21

Petition for Approval for Transfer of Payment Rights

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Petition for Approval of Transfer of Payment Rights Under Structured Settlement by Petitioner J. G. Wentworth Originations, LLC (“Petitioner”) (Unopposed).

Tentative Ruling: The petition for approval of transfer of payment rights under structured settlement is GRANTED.

Counsel for Petitioner is to give notice within two (2) court days.

Formal order to be submitted by Counsel for Petitioner.

Analysis: The transfer agreement is effective only upon approval in a final court order. (Ins. Code § 10139.5(a).)

Procedural Issues: The petition includes all necessary documents. (See Ins. Code § 10139.5, subd. (f).) The petition is accompanied by written disclosures containing all information as required. (See Ins. Code, § 10136, subd. (b).) The Purchase Agreement contains all of the required information, and no prohibited terms. (See Ins. Code, § 10136, subd. (c); see also Ins. Code, § 10138, subds. (a)-(b).) Petitioner shall provide a copy of the annuity contract and the underlying structured settlement agreement (Exhibits C and D) if received. Based on the foregoing, the Court considers the merits of the petition.

Merits: In order to grant the petition for approval, the court must expressly find:

- (1) the transfer is in the best interest of the Payee, taking into account the welfare and support of the Payee's dependents;
- (2) the Payee has been advised in writing to seek independent professional advice and either has received that advice or knowingly waived it;

- (3) the Payee has received the disclosure form (§ 10136);
- (4) the transfer agreement complies with Insurance Code sections 10136 and 10138;
- (5) the transfer does not contravene any applicable statute or court order;
- (6) the Payee reasonably understands the terms of the transfer agreement and disclosure form; and
- (7) the Payee understands his or her right to cancel and does not wish to do so.

(Ins. Code §§ 10137, 10139.5(a); *321 Henderson Receivables Origination LLC v. Sioteco* (2009) 173 Cal.App.4th 1059, 1066.)

When determining whether the proposed transfer should be approved, including whether the transfer is fair, reasonable, and in the payee's best interest, taking into account the welfare and support of the payee's dependents, the court must consider the totality of the circumstances, including, but not limited to, each item listed below. (See Ins. Code §10139.5(b).)

(1) The reasonable preference and desire of the payee to complete the proposed transaction, taking into account the payee's age, mental capacity, legal knowledge, and apparent maturity level. The petition shows Transferor's reasonable preference and desire to complete the transactions taking into account her age, mental capacity, legal knowledge, and apparent maturity level. Petitioner is 50 years old, has sufficient mental capacity, legal knowledge, maturity level.

(2) The stated purpose of the transfer. The stated purpose of the transfer—to help alleviate financial hardship—is reasonable. Transferor is not married. He is self-employed and works 60 hours per week developing a start-up business named Beeep. He is in the early stages of developing the business and is not currently earning any income from the business. He does earn \$4,667.00 per month from his annuity but needs this money to have the financial means to invest in the development of the business (including retaining a business advisor and an attorney for the business formation and related legal matters), pay off debt including medical expenses, and help with ordinary living expenses. He does not owe any child support.

(3) The payee's financial and economic situation. Transferor is experiencing immediate economic hardship and wants to pay expenses for himself and to develop his business to generate future income.

(4) The terms of the transaction, including whether the payee is transferring monthly or lump sum payments or all or a portion of his or her future payments. Transferor is transferring a future payment of \$210,000.00 due to be paid to Petitioner on July 1, 2032. The future payments have a discounted present value of \$156,600.36. This was calculated using a discount rate of 5% to annuities in probate proceedings. The purchase price being paid to Transferor is \$128,000. That amount was calculated using a discount rate of 8.58%, meaning he will be paying the equivalent of 5.85% interest per year. He is not being charged any expenses.

(5) Whether, when the settlement was completed, the future periodic payments that are the subject of the proposed transfer were intended to pay for the future medical care and treatment of the payee relating to injuries sustained by the payee in the incident that was the subject of the

settlement and whether the payee still needs those future payments to pay for that future care and treatment. The future payments were not intended to pay for medical care and treatment.

(6) Whether, when the settlement was completed, the future periodic payments that are the subject of the proposed transfer were intended to provide for the necessary living expenses of the payee and whether the payee still needs the future structured settlement payments to pay for future necessary living expenses. The future payments were not intended to pay for necessary living expenses.

(7) Whether the payee is, at the time of the proposed transfer, likely to require future medical care and treatment for the injuries that the payee sustained in connection with the incident that was the subject of the settlement and whether the payee lacks other resources, including insurance, sufficient to cover those future medical expenses. Transferor will not require future medical care and treatment. The basis for the annuity was purely monetary, for a past personal injury claim with no ongoing injury or need for medical treatment.

(8) Whether the payee has other means of income or support, aside from the structured settlement payments that are the subject of the proposed transfer, sufficient to meet the payee's future financial obligations for maintenance and support of the payee's dependents, specifically including, but not limited to, the payee's child support obligations, if any. The payee shall disclose to the transferee and the court his or her court-ordered child support or maintenance obligations for the court's consideration. Transferor is self-employed, not married, has no children, and has no child support obligations. Transferor seeks immediate payment in order to deal with immediate financial hardship to invest in his start-up business, pay off existing debt, and to assist with ordinary living expenses.

(9) Whether the financial terms of the transaction, including the discount rate applied to determine the amount to be paid to the payee, the expenses and costs of the transaction for both the payee and the transferee, the size of the transaction, the available financial alternatives to the payee to achieve the payee's stated objectives, are fair and reasonable. The discount rate of 8.58% is fair and reasonable, given that Transferor would have to wait another 4 years to receive money that he can use now to provide him with the opportunity to improve his current financial situation, satisfy existing obligations, and support the launch and operation of his business.

(10) Whether the payee completed previous transactions involving the payee's structured settlement payments and the timing and size of the previous transactions and whether the payee was satisfied with any previous transaction. Transferor has not completed any prior transactions.

(11) Whether the transferee attempted previous transactions involving the payee's structured settlement payments that were denied, or that were dismissed or withdrawn prior to a decision on the merits, within the past five years. Transferor has never attempted an unsuccessful transaction.

(12) Whether, to the best of the transferee's knowledge after making inquiry with the payee, the payee has attempted structured settlement payment transfer transactions with another person or entity, other than the transferee, that were denied, or which were dismissed or withdrawn prior

to a decision on the merits, within the past five years. Transferor has not attempted any prior transaction.

(13) Whether the payee, or his or her family or dependents, are in or are facing a hardship situation. Transferor states he is experiencing financial hardship and would like to use the funds to invest in his start-up business including retaining a business advisor and legal consultant, pay off medical expenses, and cover ordinary living expenses.

(14) Whether the payee received independent legal or financial advice regarding the transaction. The court may deny or defer ruling on the petition for approval of a transfer of structured settlement payment rights if the court believes that the payee does not fully understand the proposed transaction and that independent legal or financial advice regarding the transaction should be obtained by the payee. Transferor was advised in writing to seek independent professional advice regarding this transfer and has knowingly waived his right to counsel in writing.

(15) Any other factors or facts that the payee, the transferee, or any other interested party calls to the attention of the reviewing court or that the court determines should be considered in reviewing the transfer. No other factors have been called to the Court's attention.

Conclusion: In sum, the items listed above weigh in favor of granting approval. Therefore, the Court intends to GRANT the petition.